

		The order relieving counsel will be effective upon the filing of a proof of service of the executed order upon all parties. Moving Counsel shall give notice.
8	Medina vs. SACER Enterprises, LLC	TENTATIVE RULING: <u>Motion to Consolidate</u> Defendants Miguel Lopez Hernandez and Sacer Enterprises, LLC moves to consolidate this case with Hernandez v. Mathis Bros. Oklahoma LLC et al. (30-2023-01323474-CU-PA-NJC) for all purposes For the following reasons, the motion to consolidate the two matters is GRANTED. The two matters are consolidated for all purposes. This action (2022-01292548) shall be the lead action. <u>Procedural Requirements for a Motion to Consolidate</u> Rule 3.350(a) of the California Rules of Court sets forth the requirements for a motion to consolidate: (1) A notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) Be filed in each case sought to be consolidated. (2) The motion to consolidate: (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and (C) Must have a proof of service filed as part of the motion. <u>General Principles Re Consolidation of Cases</u> When there are actions involving common questions of law or fact

pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures); and to avoid the substantial danger of inconsistent adjudications (i.e., different results because tried before different juries, or a judge and jury, etc.). Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, 12:340 (The Rutter Group 2012).

There are two types of consolidation, a complete consolidation which results in a single action and a consolidation of separate actions for trial. (*Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1396.) When cases are consolidated completely, which is usually ordered where the parties are identical and the causes could have been joined, the pleadings are considered merged, one set of findings is made, and one judgment is rendered. (Id.) When cases are consolidated for trial only, the pleadings, verdicts, findings and judgments are kept separate and the actions are simply tried together for the sake of convenience and judicial economy. (Id.)

The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978–79.)

Each case presents its own facts and circumstances, but the court will usually consider the following: (1) timeliness of the motion: i.e., whether granting consolidation would delay the trial of any of the cases involved, or whether discovery in one or more of the cases has proceeded without all parties present; (2) complexity: i.e., whether joining the actions involved would make the trial too confusing or complex for a jury; and (3) prejudice: i.e., whether consolidation would adversely affect the rights of any party. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, 12:362.)

Merits

The parties in this action are represented by the same counsel as those in the related action. Because each of the defendants in the related action are defendants in this action or are represented by counsel in this action, because the actions arise from the same set of facts, and because the parties have stipulated to consolidation, the Court grants the motion.

		Moving Defendant shall give notice of this ruling.
9	Hernandez vs. Mathis Bros. Oklahoma LLC	CMC
10	Verganza Chavez vs. Savant Construction, Inc.	TENTATIVE RULING: <u>Motion to Consolidate</u> For the reasons set forth below, the unopposed Motion to Consolidate brought by Defendant Savant Construction, Inc. is GRANTED, pursuant to Code of Civil Procedure section 1048, subdivision (a). The instant action (<i>Verganza Chavez v. Savant Construction, Inc. et al.</i>, Case No. 2025-01481769) will be consolidated with <i>Palomar Specialty Insurance Company v. Savant Construction, Inc. et al.</i> (Case No. 2025-01491799), for all purposes. The instant action (Case No. 2025-01481769) will serve as the lead case. <u>Procedural Requirements for a Motion to Consolidate</u> Rule 3.350(a) of the California Rules of Court sets forth the requirements for a motion to consolidate: (1) A notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) Be filed in each case sought to be consolidated. (2) The motion to consolidate: (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and (C) Must have a proof of service filed as part of the motion.